

COURT OF APPEALS OF THE STATE OF WASHINGTON

DIVISION I

ZACKARIAH BENNETT,

Appellant,

vs.

MELVINA MANNING,

Respondent.

Case No.: 87007-6

Cause No:23-2-11352-7

MOTION TO WAIVE COSTS OF CLERK'S PAPERS PREPARATION PURSUANT TO RAP 15.2(F)

TO: The Clerk of the Court of Appeals and All Parties of Record

COMES NOW the Appellant, Zackariah Bennett, pro se, and respectfully moves this Court to waive the costs associated with the preparation and submission of the Clerk's Papers by the King County Superior Court.

I. RELIEF REQUESTED

Appellant seeks an order waiving the costs of preparing and submitting Clerk's Papers, on the basis of Appellant's indigency, pursuant to RAP 15.2(f). Alternatively, Appellant request an order be entered extending the waiver of Clerk's fees already on file with the Superior Court to cover the Clerk's Papers.

II. FACTS

1. Appellant is proceeding pro se in this matter.

2. Appellant has already been granted an Order of Indigency in the trial court, waiving certain court fees due to financial hardship.

3. Appellant receives public assistance, including TANF benefits and food stamps, and is unable to afford the costs associated with the preparation of Clerk's Papers.

4. Appellant has made a good faith effort to request this relief from the trial court, but the trial court either denied the motion or declined to provide a waiver of these costs.

III. LEGAL AUTHORITY

1. RAP 15.2(f):

RAP 15.2(f) permits indigent appellants to request relief from the appellate court for necessary costs associated with an appeal. Clerk's Papers are critical for appellate review and should be included in the relief provided to indigent appellants.

2. General Rule 34 (GR 34):

GR 34 reflects the Washington State courts' commitment to ensuring access to justice for indigent persons, waiving costs that would otherwise present a substantial hardship.

3. Washington Constitution, Article I, Section 10:

Appellant's right to access the courts is guaranteed under the Washington Constitution, and failure to waive these costs would impair Appellant's ability to seek meaningful appellate review.

IV. CONCLUSION

For the foregoing reasons, Appellant respectfully requests that this Court enter an order waiving the costs associated with the preparation and submission of Clerk's Papers or direct the Superior Court to do so.

DATED this 22nd day of January, 2025.

Respectfully submitted,

Zackariah J. Bennett

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah J. Bennett', written over the printed name.

Pro Se

2382 words

